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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:05-cv-01853-REB-CBS

Vic Barbish Personal Gems, Inc. et al v. Wells Fargo and Company
et al

Assigned to: Judge Robert E. Blackburn
Referred to: Magistrate Judge Craig B. Shaffer
Cause: 18:1962 Racketeering (RICO) Act

Date Filed: 09/22/2005
Date Terminated: 03/28/2007
Jury Demand: Both
Nature of Suit: 470 Racketeer/Corrupt
Organization
Jurisdiction: Diversity

Plaintiff**Vic Barbish Personal Gems, Inc.**

represented by **Mark T. McLeod**
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ATTORNEY TO BE NOTICED

Plaintiff**Highland Holdings, LLC**

represented by **Mark T. McLeod**
(See above for address)
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Plaintiff**Victor Barbish**

represented by **Mark T. McLeod**
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Plaintiff**Mario Barbish**

represented by **Mark T. McLeod**
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Plaintiff**Harry Harrison**

represented by **Mark T. McLeod**
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Plaintiff

Karen Klausmeyer

represented by **Mark T. McLeod**
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V.

Defendant

Wells Fargo and Company

represented by **Brian J. Berardini**
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Defendant

Steven E. Boynton
TERMINATED: 03/14/2006

Defendant

Boynton Law Offices, PA
TERMINATED: 03/14/2006

Defendant

Allen Bhak
TERMINATED: 04/17/2007

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Date Filed	#	Docket Text
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09/22/2005	1	COMPLAINT against all defendants (Filing fee \$ 250, Receipt Number 263032) Summons Issued, filed by Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish. (Attachments: # 1 Civil Cover Sheet # 2 Receipt)(bpm,) (Entered: 09/23/2005)
09/23/2005	2	STATEMENT <i>FRCP 7.1 Corporate Statement</i> by Plaintiff Vic Barbish Personal Gems, Inc.. (McLeod, Mark) (Entered: 09/23/2005)
09/26/2005	3	ORDER REFERRING CASE to Magistrate Judge Craig B Shaffer by Judge Blackburn. (rebsec,) (Entered: 09/26/2005)
10/04/2005	4	ORDER setting Rule 16(b) Scheduling Conference and Rule 26(f) Planning Meeting set for 12/15/2005 10:00 AM in Courtroom A 402 before Magistrate Judge Craig B Shaffer. Signed by Magistrate Judge Craig B Shaffer on 10/4/05. (dlb,) (Entered: 10/05/2005)
12/01/2005	5	First AMENDED COMPLAINT and Jury Demand of <i>Plaintiffs</i> against all defendants, filed by Victor Barbish. (Attachments: # 1)(McLeod, Mark) (Modified on 12/5/2005 to add jury demand) (dlb,). (Entered: 12/01/2005)
12/06/2005	6	First MOTION to Continue of <i>Scheduling and Planning Conference</i> by Plaintiff Victor Barbish. (McLeod, Mark) (Entered: 12/06/2005)
12/07/2005	7	MEMORANDUM referring to Magistrate Judge Shaffer : 6 First MOTION to Continue of <i>Scheduling and Planning Conference</i> filed by Victor Barbish, by Judge Robert E. Blackburn on 12/7/05. (Text Only Entry - No Document Attached) (rebsec,) (Entered: 12/07/2005)
12/13/2005	8	MINUTE ORDER granting 6 First MOTION to Continue of Scheduling and Planning Conference by Plaintiff. Scheduling conference RESET to 2/13/06 at 9:15 a.m., in Courtroom A-402 by Magistrate Judge Craig B Shaffer on 12/13/05. (dlb,) (Entered: 12/13/2005)
12/27/2005	9	MOTION to Dismiss for Lack of Jurisdiction by Defendants Steven E. Boynton, Boynton Law Offices, PA. (gms,) (Entered: 12/29/2005)
12/27/2005	10	Memorandum of Law (BRIEF) in Support of 9 MOTION to Dismiss for Lack of Jurisdiction filed by Defendants Steven E. Boynton, Boynton Law Offices, PA. (gms,) (Entered: 12/29/2005)
01/19/2006	11	First MOTION for Extension of Time to File Response/Reply to 9 <i>MOTION to Dismiss for Lack of Jurisdiction by Defendants</i> by Plaintiff Victor Barbish. (McLeod, Mark) (Modified on 1/19/2006 to add linkage) (dlb,). (Entered: 01/19/2006)
01/19/2006	12	First MOTION For Extension of Time to <i>Serve Complaint</i> by Plaintiff Victor Barbish. (McLeod, Mark) (Entered: 01/19/2006)
01/19/2006	13	MEMORANDUM referring to Magistrate Judge Shaffer : 12 First MOTION For Extension of Time to <i>Serve Complaint</i> filed by Victor Barbish, by Judge Robert E. Blackburn on 1/19/06. (Text Only Entry - No Document Attached) (rebsec,) (Entered: 01/19/2006)
01/19/2006	14	MINUTE ORDER denying 11 First MOTION for Extension of Time to File Response/Reply to 9 MOTION to Dismiss for Lack of Jurisdiction by Defendants by Plaintiff by Judge Robert E. Blackburn on 1/19/06. (dlb,) (Entered: 01/19/2006)
01/25/2006	15	MINUTE ORDER denying 12 First MOTION For Extension of Time to Serve Complaint by Plaintiff by Magistrate Judge Craig B Shaffer on 1/25/06. (dlb,) (Entered: 01/25/2006)
02/10/2006	16	Proposed Scheduling Order by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish. (McLeod,

		Mark) (Entered: 02/10/2006)
02/13/2006	17	Minute Entry for proceedings held before Judge Craig B Shaffer : Scheduling Conference NOT held on 2/13/2006. Additional Scheduling Conference set for 3/15/2006 11:30 AM before Magistrate Judge Craig B Shaffer. Proposed scheduling order due 3/10/06.(Court Reporter FTR - Ellen E. Miller.) (dlb,) (Entered: 02/13/2006)
03/10/2006	18	Proposed Scheduling Order by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish. (McLeod, Mark) (Entered: 03/10/2006)
03/14/2006	19	STIPULATION of Dismissal of Party <i>Steve Boynton and Boynton Law Offices</i> by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish. (McLeod, Mark) (Entered: 03/14/2006)
03/14/2006	20	ORDER OF DISMISSAL AS TO DEFENDANTS, STEVEN E. BOYNTON AND BOYNTON LAW OFFICES, PA with prejudice, each party to pay own costs and fees . Signed by Judge Robert E. Blackburn on 3/14/06. (dlb,) (Entered: 03/14/2006)
03/15/2006	21	MOTION to Dismiss <i>for Failure to Effect Service</i> by Defendant Allen Bhak. (Miletich, James) (Entered: 03/15/2006)
03/15/2006	22	Minute Entry (Courtroom Minutes/Minute Order)for proceedings held before Magistrate Judge Craig B Shaffer : Scheduling Conference held on 3/15/2006. Discovery due by 10/1/2006. Dispositive Motions due by 11/1/2006. Settlement Conference set for 8/3/2006 01:30 PM in Courtroom A 402 before Magistrate Judge Craig B Shaffer. Updated Settlement Statements due 07/26/2006. Final Pretrial Conference set for 1/9/2007 10:00 AM in Courtroom A 402 before Magistrate Judge Craig B Shaffer. Trial Preparation Conference set for 2/23/2007 at 10:30 AM in Courtroom A 701 before Judge Robert E. Blackburn. Jury Trial set for 3/12/2007 08:30 AM in Courtroom A 701 before Judge Robert E. Blackburn. (Court Reporter Darlene Martinez) (cbcsd/eem) (Entered: 03/15/2006)
03/15/2006	23	SCHEDULING ORDER: Signed by Magistrate Judge Craig B Shaffer on 03/15/2006. (cbcsd/eem) (Entered: 03/15/2006)
03/15/2006	24	Supplemental CERTIFICATE of Mailing by Clerk of Court re 22 Courtroom Minutes 23 Scheduling Order to Brian Berardini (dlb,) (Entered: 03/15/2006)
03/15/2006	25	TRIAL PREPARATION CONFERENCE ORDER : Ten (10) Day Jury Trial set for 3/12/2007 08:30 AM in Courtroom A 701 before Judge Robert E. Blackburn. Trial Preparation Conference set for 2/23/2007 at 10:30 AM in Courtroom A 701 before Judge Robert E. Blackburn. Signed by Judge Robert E. Blackburn on 3/15/06. (dlb,) (Entered: 03/15/2006)
03/23/2006	26	ANSWER to Amended Complaint by Wells Fargo and Company.(Berardini, Brian) (Entered: 03/23/2006)
04/04/2006	27	RESPONSE to Motion re 21 MOTION to Dismiss <i>for Failure to Effect Service</i> filed by Plaintiff Victor Barbish. (McLeod, Mark) (Entered: 04/04/2006)
04/19/2006	28	REPLY to Response to Motion re 21 MOTION to Dismiss <i>for Failure to Effect Service</i> filed by Defendant Allen Bhak. (Miletich, James) (Entered: 04/19/2006)
04/21/2006	29	ORDER denying Defendant Bhak's 21 Motion to Dismiss for Failure to Effect Service. Signed by Judge Robert E. Blackburn on 4/21/06. (gms,) (Entered: 04/21/2006)
05/01/2006	30	ANSWER to Amended Complaint by Allen Bhak.(Miletich, James) (Entered: 05/01/2006)

05/15/2006	31	DESIGNATION OF NON-PARTY <i>Steven Boyton, Esq and Boynton Law Offices</i> by Defendant Wells Fargo and Company. (Berardini, Brian) (Entered: 05/15/2006)
05/15/2006	32	DESIGNATION OF NON-PARTY by Defendant Allen Bhak. (Miletich, James) (Entered: 05/15/2006)
06/29/2006	33	NOTICE of Service by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish (McLeod, Mark) (Entered: 06/29/2006)
07/19/2006	34	Stipulated MOTION to Reset <i>Settlement Conference</i> by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish, Defendants Wells Fargo and Company, Allen Bhak. (Attachments: # 1 Proposed Order (PDF Only))(Houghtaling, Walter) (Entered: 07/19/2006)
07/19/2006	35	MEMORANDUM referring to Magistrate Judge Shaffer : 34 Stipulated MOTION to Reset <i>Settlement Conference</i> filed by Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish,, Mario Barbish, Karen Klausmeyer, Allen Bhak, Harry Harrison, Wells Fargo and Company, by Judge Robert E. Blackburn on 7/19/06. (Text Only Entry - No Document Attached) (rebsec,) (Entered: 07/19/2006)
07/19/2006	36	MINUTE ORDER granting 34 Stipulated MOTION to Reset Settlement Conference. Settlement Conference reset for 10/30/2006 01:30 PM in Courtroom A 402 before Magistrate Judge Craig B Shaffer by Magistrate Judge Craig B Shaffer on 7/19/06. (dln,) (Entered: 07/19/2006)
08/02/2006	37	Unopposed MOTION For Extension of Time to <i>Designate Expert Witnesses</i> by Plaintiff Victor Barbish. (Attachments: # 1 Proposed Order (PDF Only) Proposed Order Granting Extension of Time)(McLeod, Mark) (Entered: 08/02/2006)
08/02/2006	38	MEMORANDUM referring to Magistrate Judge Shaffer : 37 Unopposed MOTION For Extension of Time to <i>Designate Expert Witnesses</i> filed by Victor Barbish, by Judge Robert E. Blackburn on 8/2/06. (Text Only Entry - No Document Attached) (rebsec,) (Entered: 08/02/2006)
08/03/2006	39	MINUTE ORDER granting 37 Unopposed MOTION For Extension of Time to Designate Expert Witnesses by Plaintiff. Affirmative experts by 8/31/06; rebuttal experts by 10/2/06; discovery cut-off 10/2/06 by Magistrate Judge Craig B Shaffer on 8/3/06. (dln,) (Entered: 08/03/2006)
08/28/2006	40	First MOTION for Leave to <i>File Opposed Motion to Compel</i> by Plaintiff Victor Barbish. (Attachments: # 1 # 2 # 3)(McLeod, Mark) (Entered: 08/28/2006)
08/28/2006	41	MEMORANDUM referring to Magistrate Judge Shaffer : 40 First MOTION for Leave to <i>File Opposed Motion to Compel</i> filed by Victor Barbish, by Judge Robert E. Blackburn on 8/28/06. (Text Only Entry - No Document Attached) (rebsec,) (Entered: 08/28/2006)
08/29/2006	42	MINUTE ORDER Denying 40 Plaintiff's First MOTION for Leave to File Opposed Motion to Compel. Entered by Magistrate Judge Craig B Shaffer on 8/29/06. (pap,) (Entered: 08/29/2006)
08/31/2006	43	NOTICE of Service of Plaintiffs' <i>Designation of Expert Witnesses</i> by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish (McLeod, Mark) (Entered: 08/31/2006)
08/31/2006	44	Second MOTION For Extension of Time to <i>Provide Expert Disclosures and Discovery Cut-off</i> by Plaintiff Victor Barbish. (McLeod, Mark) (Entered: 08/31/2006)

09/01/2006	45	MEMORANDUM referring to Magistrate Judge Shaffer : 44 Second MOTION For Extension of Time to <i>Provide Expert Disclosures and Discovery Cut-off</i> filed by Victor Barbish, by Judge Robert E. Blackburn on 9/1/06. (Text Only Entry - No Document Attached) (rebsec,) (Entered: 09/01/2006)
09/06/2006	46	MINUTE ORDER : Telephonic Discovery Dispute/Status Conference set for 9/13/2006 08:30 AM before Magistrate Judge Craig B Shaffer by Magistrate Judge Craig B Shaffer on 9/5/06. (dln,) (Entered: 09/06/2006)
09/13/2006	47	Minute Entry for proceedings held before Judge Craig B Shaffer : Status Conference held on 9/13/2006. (Court Reporter FTR - Ben Van Dyke.) (dln,) (Entered: 09/13/2006)
10/17/2006	48	Stipulated MOTION to Continue <i>the Trial Date, Vacate the Settlement Conference and Extend Discovery and Disclosure Deadline</i> by Defendant Allen Bhak. (Attachments: # 1 Proposed Order)(Miletich, James) (Entered: 10/17/2006)
10/18/2006	49	Docket Annotation Terminating 48 Stipulated MOTION to Continue <i>the Trial Date, Vacate the Settlement Conference and Extend Discovery and Disclosure Deadline, Both pleadings were Proposed Orders. This is to be refiled with the Motion and Proposed Order as an attachment. Text only entry - no document attached.</i> (erv,) (Entered: 10/18/2006)
10/18/2006	50	Stipulated MOTION to Continue <i>the Trial Date, Vacate the Settlement Conference and Extend Discovery and Disclosure Deadlines</i> by Defendant Allen Bhak. (Attachments: # 1)(Miletich, James) (Entered: 10/18/2006)
10/18/2006	51	MEMORANDUM regarding 50 Stipulated MOTION to Continue <i>the Trial Date, Vacate the Settlement Conference and Extend Discovery and Disclosure Deadlines</i> filed by Allen Bhak by Judge Robert E. Blackburn on 10/18/06. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Craig B Shaffer (rebsec,) (Entered: 10/18/2006)
10/20/2006	52	MINUTE ORDER THIS MATTER IS before the court on a Stipulated Motion to Continue the Trial Date, Vacate the Settlement Conference and Extend Discovery and Disclosure Deadlines 50 . IT IS HEREBY ORDERED that the settlement conference set for October 30, 2006, at 1:30 p.m. is CONVERTED into a telephonic status conference. The court will address the portion of the motion that requests an extension of discovery and disclosure deadlines. Parties are advised that this court cannot make a ruling as to a continuation of the trial date. by Magistrate Judge Craig B Shaffer on 10/20/06. (erv,) (Entered: 10/20/2006)
10/25/2006	53	ORDER denying 50 the Parties Stipulated Motion to Continue the Trial Date, Vacate the Settlement Conference and Extend Discovery and Disclosure deadlines insofar as it seeks to vacate the trial date. Signed by Judge Robert E. Blackburn on 10/25/06.(erv,) (Entered: 10/25/2006)
10/30/2006	54	Minute Entry for proceedings held before Magistrate Judge Craig B Shaffer : denying 44 Without Prejudice Pla's Unopposed Motion for Extension of Time for Pla's to Designate Experts and Discovery Cut-Off Deadline for reasons as stated on the record; Status Conference held on 10/30/2006. Dismissal Paper due by 11/10/2006. (Court Reporter FTR Ellen Miller.) (erv,) (Entered: 10/30/2006)
11/06/2006	55	Stipulated MOTION For Extension of Time to <i>Extend Discovery and Disclosure Deadlines</i> by Defendant Allen Bhak Attachments: # 1 Proposed Document Proposed Order Re: Motion to Extend Discovery and Disclosure Deadlines)(Miletich, James) (Modified on 11/7/2006 to correct the Filer of the Motion)(erv,). (Entered: 11/06/2006)

11/06/2006	56	NOTICE of Deposition by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish (McLeod, Mark) (Entered: 11/06/2006)
11/07/2006	57	MEMORANDUM regarding 55 Stipulated MOTION For Extension of Time to <i>Extend Discovery and Disclosure Deadlines</i> filed by Wells Fargo and Company by Judge Robert E. Blackburn on 11/7/06. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Craig B Shaffer (rebsec,) (Entered: 11/07/2006)
11/14/2006	58	MINUTE ORDER The court having reviewed the settlement statements submitted by the parties, concludes that based upon the positions expressed, a settlement conference would not be productive at this time. A settlement conference may be set upon the request of the parties, after they have conferred and determined that such a conference would be of assistance in resolving the case. by Magistrate Judge Craig B Shaffer on 11/14/06. (erv,) (Entered: 11/14/2006)
11/14/2006	59	MINUTE ORDER granting in part and denying in part 55 Motion for Extension of Time to Extend Discovery and Disclosure Deadlines: Rule 26(a)(2) AFFIRMATIVE expert disclosures November 24, 2006; Rule 26(a)(2) REBUTTAL expert disclosures December 22, 2006; Fact discovery cutoff December 31, 2006; Expert discovery cutoff January 8, 2007; No further extensions of these deadlines will be granted. Further, parties are advised that the January 9, 2007, final pretrial conference and the February 23, 2007, final trial preparation conference before Judge Blackburn remain set and will not change. by Magistrate Judge Craig B Shaffer on 11/14/06.(erv,) (Entered: 11/14/2006)
11/14/2006	60	Utility Resetting Deadlines: Text only entry - no document attached. Discovery due by 12/31/2006(erv,) (Modified on 11/14/2006 to reflect the discovery date change only)(erv,). (Entered: 11/14/2006)
11/14/2006	61	Docket Annotation re: 59 Order on Motion for Extension of Time, Rule 26(a)(2) AFFIRMATIVE expert disclosures November 24, 2006; Rule 26(a)(2) REBUTTAL expert disclosures December 22, 2006; Fact discovery cutoff December 31, 2006; Expert discovery cutoff January 8, 2007, Pursuant to the Minute Order Text only entry - no document attached. (erv,) (Entered: 11/14/2006)
01/04/2007	62	Proposed Pretrial Order by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish, Defendants Wells Fargo and Company, Steven E. Boynton, Boynton Law Offices, PA, Allen Bhak. (Attachments: # 1 Plaintiffs' Exhibit List# 2 Defendants' Joint Exhibit List) (McLeod, Mark) (Entered: 01/04/2007)
01/09/2007	63	Minute Entry for proceedings held before Magistrate Judge Craig B Shaffer : Final Pretrial Conference held on 1/9/2007, Set Deadlines:. Revised Proposed Pretrial Order due by 1/19/2007. (Court Reporter FTR J. Chris Smith.) (erv,) (Entered: 01/09/2007)
01/19/2007	64	First MOTION to Amend/Correct/Modify <i>First Amended Complaint</i> by Plaintiff Victor Barbish. (Attachments: # 1 Exhibit Exhibit A to Motion, First Amended Complaint# 2 Exhibit Exhibit B to Motion to Amend Misnomer in Complaint)(McLeod, Mark) (Entered: 01/19/2007)
01/19/2007	65	Proposed Pretrial Order by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish, Defendants Wells Fargo and Company, Steven E. Boynton, Boynton Law Offices, PA, Allen Bhak. (Attachments: # 1 Exhibit Parties' Joint Exhibit List)(McLeod, Mark) (Entered: 01/19/2007)
01/22/2007	66	First MOTION to Amend/Correct/Modify <i>Misnomer in First Amended Complaint</i> by Plaintiff Victor Barbish. (Attachments: # 1 Exhibit Exhibit A# 2 Exhibit Exhibit B)

		(McLeod, Mark) (Entered: 01/22/2007)
01/22/2007	67	MINUTE ORDER striking 66 Motion to Amend Misnomer in First Amended Complaint, by Judge Robert E. Blackburn on 1/22/07.(erv,) (Entered: 01/23/2007)
01/23/2007	68	First MOTION to Amend/Correct/Modify <i>First Amended Complaint</i> by Plaintiff Victor Barbish. (Attachments: # 1 Exhibit Exhibit A# 2 Exhibit Exhibit B# 3 Exhibit Exhibit C) (McLeod, Mark) (Entered: 01/23/2007)
01/23/2007	69	MEMORANDUM regarding 68 First MOTION to Amend/Correct/Modify <i>First Amended Complaint</i> filed by Victor Barbish by Judge Robert E. Blackburn on 1/23/07. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Craig B Shaffer (rebsec,) (Entered: 01/23/2007)
01/26/2007	70	PRETRIAL ORDER; Plas Motion to Amend Complaint is pending before the Court; Discovery has been completed except for certain documents, which shall occur within the next week; Trial is to a Jury estimated at 10 days. Signed by Magistrate Judge Craig B Shaffer on 1/26/07. (Attachments: # 1 Exhibit list)(erv,) (Entered: 01/26/2007)
01/29/2007	71	MINUTE ORDER re: 68 First MOTION to Amend/Correct/Modify First Amended Complaint filed by Victor Barbish,the deadline to file a response is on or before 2/8/07. A Reply is Not permitted; Set Hearings: Motion Hearing set for 2/12/2007 01:30 AM in Courtroom A 402 before Magistrate Judge Craig B Shaffer. by Magistrate Judge Craig B Shaffer on 1/29/07. (erv,) (Entered: 01/30/2007)
01/31/2007	72	First MOTION for Leave to <i>Participate in Hearing Telephonically</i> by Plaintiff Victor Barbish. (McLeod, Mark) (Entered: 01/31/2007)
02/01/2007	73	MEMORANDUM regarding 72 First MOTION for Leave to <i>Participate in Hearing Telephonically</i> filed by Victor Barbish by Judge Robert E. Blackburn on 2/1/07. (Text Only Entry - No Document Attached)Motions referred to Magistrate Judge Craig B Shaffer (rebsec,) (Entered: 02/01/2007)
02/01/2007	74	MINUTE ORDER granting 72 Pla's Motion for Leave to partiiciapte in Hearing Telephonically, by Magistrate Judge Craig B Shaffer on 2/1/07.(erv,) (Entered: 02/01/2007)
02/02/2007	75	OBJECTIONS to 62 Proposed Pretrial Order, <i>and Plaintiffs' Exhibits</i> by Defendant Wells Fargo and Company. (Berardini, Brian) (Entered: 02/02/2007)
02/06/2007	76	OBJECTIONS to <i>Plaintiffs' Exhibits</i> by Defendant Allen Bhak. (Miletich, James) (Entered: 02/06/2007)
02/08/2007	77	RESPONSE to Motion re 66 First MOTION to Amend/Correct/Modify <i>Misnomer in First Amended Complaint</i> filed by Defendant Wells Fargo and Company. (Berardini, Brian) (Entered: 02/08/2007)
02/08/2007	78	RESPONSE to Motion re 68 First MOTION to Amend/Correct/Modify <i>First Amended Complaint</i> filed by Defendant Allen Bhak. (Miletich, James) (Entered: 02/08/2007)
02/09/2007	79	BRIEF <i>in Support of Its Competing, Proposed Jury Instructions</i> by Defendant Wells Fargo and Company. (Berardini, Brian) (Entered: 02/09/2007)
02/09/2007	80	Proposed Jury Instructions by Defendant Wells Fargo and Company. (Attachments: # 1 Proposed Document proposed Jury Instructons 51-97# 2 Proposed Document proposed Jury Instructions 98-127# 3 Proposed Document proposed Jury Instructions 128-147# 4 Proposed Document proposed Jury Instructions 148-150)(Berardini, Brian) (Entered: 02/09/2007)

02/09/2007	81	Proposed Jury Instructions <i>and Verdict Forms</i> by Defendant Allen Bhak. (Attachments: # 1 Proposed Document Proposed Jury Instructions #29-52# 2 Proposed Document Proposed Jury Instructions #53-85# 3 Proposed Document Proposed Verdict Forms# 4 Proposed Document Proposed Special Verdict Forms A and B)(Miletich, James) (Entered: 02/09/2007)
02/09/2007	82	BRIEF <i>In Support of Competing Jury Instructions and Verdict Forms</i> by Defendant Allen Bhak. (Miletich, James) (Entered: 02/09/2007)
02/10/2007	83	Proposed Jury Instructions by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish. (McLeod, Mark) (Entered: 02/10/2007)
02/11/2007	84	BRIEF <i>in Support of Plaintiffs' Proposed Jury Instructions</i> by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish. (McLeod, Mark) (Entered: 02/11/2007)
02/12/2007	85	Courtroom Minutes/Minute Order for proceedings held before Magistrate Judge Craig B Shaffer. Motion Hearing held on 2/12/2007: Denying without prejudice 68 Motion to Amend/Correct/Modify. (Court Reporter FTR - Ben Van Dyke) (cbscd) (Entered: 02/12/2007)
02/12/2007	86	OBJECTIONS to <i>Defendants' Exhibits</i> by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish. (McLeod, Mark) (Entered: 02/12/2007)
02/12/2007	87	Proposed Jury Instructions by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish. (McLeod, Mark) (Entered: 02/12/2007)
02/12/2007	88	BRIEF <i>in Support of Plaintiffs' Jury Instructions</i> by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish. (McLeod, Mark) (Entered: 02/12/2007)
02/23/2007	89	Minute Entry for proceedings held before Judge Robert E. Blackburn : Trial Preparation Conference held on 2/23/2007. (Court Reporter Suzanne Claar.) (erv,) (Entered: 02/23/2007)
02/23/2007	90	Witness List by Defendant Allen Bhak. (erv,) (Entered: 02/23/2007)
02/23/2007	91	Witness List by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish. (erv,) (Entered: 02/23/2007)
02/23/2007	92	Witness List by Defendant Wells Fargo and Company. (erv,) (Entered: 02/23/2007)
02/27/2007	93	Joint MOTION to Compel <i>APPEARANCE OF EDISON F. BALDWIN</i> by Defendant Allen Bhak. (Attachments: # 1 Proposed Order (PDF Only) Order)(Miletich, James) (Entered: 02/27/2007)
02/28/2007	94	ORDER Denying Without Prejudice 93 Joint Motion for an Order Compel the appearance of Edison F. Baldwin. Signed by Judge Robert E. Blackburn on 2/28/07.(erv,) (Entered: 02/28/2007)
03/01/2007	95	Witness List by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish. (McLeod, Mark) (Entered: 03/01/2007)

03/05/2007	<u>96</u>	Proposed Voir Dire <i>Questions</i> by Defendant Wells Fargo and Company. (Berardini, Brian) (Entered: 03/05/2007)
03/05/2007	<u>97</u>	Proposed Voir Dire by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish. (McLeod, Mark) (Entered: 03/05/2007)
03/06/2007	<u>98</u>	NOTICE of Settlement by Defendant Allen Bhak (Miletich, James) (Entered: 03/06/2007)
03/06/2007	<u>99</u>	NOTICE of Waiver and Acceptance of Service of Subpoena to Appear at Trial served on Witness Louis Morrone by Defendant Wells Fargo and Company (Berardini, Brian) (Entered: 03/06/2007)
03/07/2007	<u>100</u>	Witness List <i>Amended</i> by Plaintiffs Harry Harrison, Karen Klausmeyer, Vic Barbish Personal Gems, Inc., Highland Holdings, LLC, Victor Barbish, Mario Barbish. (McLeod, Mark) (Entered: 03/07/2007)
03/08/2007	<u>101</u>	ORDER Attached is a Juror Questionnaire approved for use in the trial of this case. THEREFORE, IT IS ORDERED that the attached Juror Questionnaire shall be given to and completed by each prospective juror reporting for service in the trial of this case. Signed by Judge Robert E. Blackburn on 3/8/07. (Attachments: # <u>1</u> Juror Questionnaire) (erv,) (Entered: 03/08/2007)
03/09/2007	<u>102</u>	TRIAL BRIEF (<i>Amended</i>) in Support of its Competing Proposed Jury Instructions by Defendant Wells Fargo and Company. (Berardini, Brian) (Entered: 03/09/2007)
03/09/2007	<u>103</u>	Proposed Jury Instructions (<i>Competing Instructions #1-87</i>) by Defendant Wells Fargo and Company. (Attachments: # <u>1</u> Continuation of Main Document # <u>2</u> Continuation of Main Document)(Berardini, Brian) (Entered: 03/09/2007)
03/09/2007	<u>104</u>	Proposed Jury Instructions (<i>Stipulated Instructions #1-71</i>) by Defendant Wells Fargo and Company. (Attachments: # <u>1</u> Continuation of Main Document)(Berardini, Brian) (Entered: 03/09/2007)
03/12/2007	<u>105</u>	Unopposed MOTION for Trial <i>to Be Excused</i> by Defendant Allen Bhak. (Attachments: # <u>1</u> Proposed Order (PDF Only) Order)(Miletich, James) (Entered: 03/12/2007)
03/12/2007	<u>106</u>	MINUTE ORDER granting <u>105</u> Dft Bhak's Unopposed Motion to be Excused from Appearing at Trial, by Judge Robert E. Blackburn on 3/12/07.(erv,) (Entered: 03/12/2007)
03/12/2007	<u>107</u>	Minute Entry for proceedings held before Judge Robert E. Blackburn : Jury Trial Day One (1), held on 3/12/2007. (Court Reporter Suzanne Claar.) (erv,) (Modified on 3/19/2007 to reflect the correct date trial began)(erv,). (Entered: 03/13/2007)
03/13/2007	<u>108</u>	Minute Entry for proceedings held before Judge Robert E. Blackburn : Jury Trial Day Two held on 3/13/2007. (Court Reporter Suzanne Claar.) (erv,)(Modified on 3/19/2007 to reflect the correct date of the trial)(erv,). (Entered: 03/14/2007)
03/14/2007	<u>110</u>	Minute Entry for proceedings held before Judge Robert E. Blackburn : Jury Trial Day Three held on 3/14/2007. That the Plaintiffs' requested admission of four documents with Bates stamp 530 through 533 is denied. Plaintiffs' Exhibit 45 is not admitted into evidence for the reasons as stated on the record. (Court Reporter Suzanne Claar.) (erv,) (Modified on 3/19/2007 to reflect the corrected date of trial)(erv,). (Entered: 03/15/2007)
03/15/2007	<u>109</u>	Second MOTION to Amend/Correct/Modify <i>MIsnomer in Complaint and Reconsideration of Evidentiary Ruling</i> by Plaintiff Victor Barbish. (Attachments: # <u>1</u> Exhibit A# <u>2</u> Exhibit B# <u>3</u> Exhibit C# <u>4</u> Exhibit D)(McLeod, Mark) (Entered: 03/15/2007)

03/15/2007	<u>112</u>	Minute Entry for proceedings held before Judge Robert E. Blackburn : taking under advisement <u>109</u> Motion to Amend/Correct/Modify Reconsideration of Ruling Excluding Evidence of Corporate Facts; Dfts Oral Motion for Judgment as a Matter of Law is Taken Under Advisement. Day Four Jury Trial held on 3/15/2007. (Court Reporter Suzanne Claar.) (erv,) (Entered: 03/19/2007)
03/16/2007	<u>113</u>	Minute Entry for proceedings held before Judge Robert E. Blackburn : DENYING as moot for reasons stated on the record <u>109</u> Pla's Motion to Amend/Correct/Modify Reconsideration of Ruling Excluding Evidence of Corporate facts; Dfts Oral Motion for Judgment as a Matter of Law is GRANTED; Dfts Mid-Trial motion to amend its answer to assert the affirmative defense of statute of limitations is DENIED as MOOT; Dft is AWARDED its costs to be taxed by the Clerk of the Court; Jury Trial Day Five completed on 3/16/2007. (Court Reporter Suzanne Claar.) (erv,) Plaintiff's and Defendant's witness lists and joint exhibit list added on 3/20/2007 (gms,). Modified on 3/20/2007 to add witness and exhibit lists and correct file date(gms,). (Entered: 03/19/2007)
03/19/2007	<u>111</u>	Minute Entry for proceedings held before Judge Robert E. Blackburn : Jury Trial Day Three held on 3/14/2007. That the Plaintiffs' requested admission of four documents with Bates stamp 530 through 533 is denied. Plaintiffs' Exhibit 45 is not admitted into evidence for the reasons asstated on the record. (Court Reporter Suzanne Claar.) (erv,) (Modified on 3/19/2007 to reflect the corrected date of the trial)(erv,). (Entered: 03/19/2007)
03/19/2007	115	SEALED DOCUMENT Juror Questionnaires filed under Seal and placed in the Sealed Room. (erv,) Modified on 1/23/2018 to note that the document was submitted to the Jury Administrator and is no longer available in paper format in the Clerk's Office (agarc,). (Entered: 03/23/2007)
03/20/2007	114	Docket Annotation re: <u>113</u> Jury Trial - Completed. This docket entry was modified to add witness and exhibit lists and correct file date. Text only entry - no document attached. (gms,) (Entered: 03/20/2007)
03/26/2007	<u>116</u>	AFFIDAVIT of <i>Bill of Costs</i> by Defendant Wells Fargo and Company. (Berardini, Brian) (Entered: 03/26/2007)
03/28/2007	<u>117</u>	AMENDED COURTROOM Minute Entry for proceedings held before Judge Robert E. Blackburn Jury Trial Day Five: Amended <u>113</u> Order on Motion to Amend/Correct/Modify, Jury Trial - Completed, That the Plafs' Motion to Amend/Correct/Modify Reconsideration of Ruling Excluding Evidence of Corporate Facts <u>109</u> , is DENIED for the reasons as stated on the record. That the Dft's oral Motion for Judgment as a Matter of Law under Fed.R.Civ.P. 50(a)(1) is GRANTED. That judgment shall enter in favor of the dfts and against each plaintiff, jointly and essentially on each of plas' thirteen claims forrelief. That the defendant is AWARDED its costs to be taxed by the Clerk of theCourt pursuant to Fed.R.Civ.P. 54(d)(1) and D.C.COLO.LCivR 54.1; That the dft's midtrial motion to amend its answer to assert the affirmative defense of statute of limitations is DENIED as MOOT. (Court Reporter Suzanne Claar.) (erv,) (Entered: 03/28/2007)
03/28/2007	<u>118</u>	JUDGMENT by Clerk in favor of Wells Fargo and Company against Highland Holdings, LLC, Vic Barbish Personal Gems, Inc., Harry Harrison, Karen Klausmeyer, Mario Barbish, Victor Barbish; jointly and essentially on each of the plaintiffs' thirteen claims for relief. That the defendant is AWARDED its costs to be taxed by the Clerk of the Court pursuant to Fed.R.Civ.P. 54(d)(1) and D.C.COLO.LCivR 54.1; and That the jurors shall be discharged forthwith. Signed by Judge Robert E. Blackburn on 3/28/07. (erv,) (Entered: 03/28/2007)

03/30/2007	119	First MOTION to Alter Judgment <i>Granting Wells Fargo's Oral Motions for Judgment as a Matter of Law</i> by Plaintiff Victor Barbish. (McLeod, Mark) (Entered: 03/30/2007)
04/02/2007	120	MINUTE ORDER striking 119 Pla's Motion to Alter or Amend Judgment, by Judge Robert E. Blackburn on 4/2/07.(erv,) (Entered: 04/02/2007)
04/02/2007	121	MOTION to Alter Judgment <i>Dismissing Contract Claims</i> by Plaintiff Victor Barbish. (McLeod, Mark) (Entered: 04/02/2007)
04/02/2007	122	MOTION to Alter Judgment <i>Dismissal of Tort Claims</i> by Plaintiff Victor Barbish. (McLeod, Mark) (Entered: 04/02/2007)
04/03/2007	123	MINUTE ORDER striking 121 Motion to Alter Judgment or Amend Dismissal of Contract Claims Pursuant to FRCP 59(e); striking 122 Plas' Motion to Alter or Amend Dismissal of Tort Claims Pursuant to Federal Rule of Civil Procedure 59(e), with leave to refile within the page limitations, by Judge Robert E. Blackburn on 4/3/07.(erv,) (Entered: 04/03/2007)
04/10/2007	124	Partial TRANSCRIPT of Court's Ruling held on March 16, 207 before Judge Blackburn. Pages: 1 - 19. Per statute, copies of transcripts are available for inspection in the clerk's office. Parties interested in a copy may contact the court reporter or, in the case of a transcript prepared from a digital-audio taped record, the courtroom deputy for the judicial officer. (Claar, Suzanne) (Entered: 04/10/2007)
04/11/2007	125	MOTION to Alter Judgment by Plaintiff Victor Barbish. (McLeod, Mark) (Entered: 04/11/2007)
04/12/2007	126	NOTICE re 116 Affidavit of <i>Rescheduled Appearance before the Clerk of the Court to Tax Costs</i> by Defendant Wells Fargo and Company (Berardini, Brian) (Entered: 04/12/2007)
04/17/2007	127	Stipulated MOTION to Dismiss Party <i>With Prejudice</i> by Defendant Allen Bhak. (Attachments: # 1 Proposed Order (PDF Only) ORDER GRANTING STIPULATION FOR DISMISSAL OF DEFENDANT ALLEN BHAK WITH PREJUDICE)(Miletich, James) (Entered: 04/17/2007)
04/17/2007	128	ORDER Approving 127 Stipulated MOTION to Dismiss Dft Allen Bhak With Prejudice, Allen Bhak terminated. Signed by Judge Robert E. Blackburn on 4/17/07. (erv,) (Entered: 04/17/2007)
04/17/2007	129	Costs Taxed in amount of \$ 1,494.59 against Plas' (erv,) (Entered: 04/17/2007)
04/20/2007	130	MOTION for Costs by Defendant Wells Fargo and Company. (Berardini, Brian) (Entered: 04/20/2007)
04/27/2007	131	RESPONSE to Motion re 125 MOTION to Alter Judgment filed by Defendant Wells Fargo and Company. (Berardini, Brian) (Entered: 04/27/2007)
01/22/2008	132	ORDER denying 130 Dft Wells Fargo Bank's Motion for Taxation of Costs Pursuant to 54(d)(1). Signed by Judge Robert E. Blackburn on 1/22/08.(erv,) (Entered: 01/23/2008)
01/22/2008	133	ORDER denying 125 Pla's Motion to Alter or Amend Dismissal of Claims Pursuant to Federal Rules of Civil Procedures 59(e). Signed by Judge Robert E. Blackburn on 1/22/08.(erv,) (Entered: 01/23/2008)

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